

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

Crl.Misc No.13016-M/2026

Muhammad Latif Khan **Versus** Imran, etc.

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge and that of parties or counsel, where necessary.
	2.3.2026	Mr. Sikandar Javed, Advocate for the petitioner.

Through the instant misc. petition under section 561-A Cr.P.C., the petitioner has called in question the vires of Order dated 12.5.2025 passed by Magistrate Section-30, Lahore Cantt., whereby; private complaint titled Muhammad Latif Khan Vs. Imran, etc. filed by the petitioner under sections 324/34 PPC was dismissed. Against the said Order, the petitioner preferred revision petition before the Additional Sessions Judge, Lahore, which too was dismissed vide impugned Order dated 19.11.2025.

2. Briefly stated, the petitioner/complainant, namely Muhammad Latif Khan son of Allah Ditta, resident of Judge Street, Tajpura Road, Ghaziabad, Lahore, asserts that on 28.03.2024 at about 6:45 p.m., his son, Dr. Aleem Khan, was returning home after offering prayer at the mosque. Upon reaching near their street, he was allegedly confronted by respondents Imran son of Sharif, armed with a dagger; Moaz son of Imran, armed with a pistol; and Usman son of Sharif, armed with an iron rod, accompanied by two unidentified persons carrying sticks. It is alleged that respondent Imran instigated the co-accused by raising a lalkara to apprehend Dr. Aleem Khan and not to spare him. Thereupon, respondent Usman allegedly caught hold of Dr. Aleem Khan, while respondent Imran inflicted a dagger blow with the intention to commit his murder, which landed on his left hand, causing a serious injury resulting in bleeding. Upon hearing the commotion, the wife of the complainant and other residents of the locality reached the spot and allegedly witnessed the occurrence, while respondent Moaz is stated to have extended threats of dire consequences. The motive, as alleged, is that

the respondents have criminal antecedents and are habitual offenders, and when the complainant restrained them from indulging in unlawful activities, they became vindictive and started extending threats. The complainant maintains that he submitted an application to the concerned police station regarding the occurrence but police did not take any action and subsequently he invoked the jurisdiction under Section 22-A(6), Cr.P.C. by filing an application before the learned ex-Officio Justice of Peace concerned, seeking registration of a cross-version in FIR No. 927/2024 dated 28.03.2024 under Section 302 PPC, registered at Police Station Ghaziabad, Lahore, against the wife and sons of the complainant, which was dismissed by the learned ex-Officio Justice of Peace. Aggrieved by the inaction of the police authorities, the complainant has instituted the private complaint seeking appropriate legal proceedings against the respondents in accordance with law which was dismissed by the learned Judicial Magistrate concerned vide impugned order dated 12.5.2025. Against the order of learned Judicial Magistrate concerned, the petitioner filed revision petition before the learned Additional Sessions Judge, concerned, who also dismissed the same vide order dated 19.11.2025.

3. It has been argued by the learned counsel for the petitioner that the findings of courts below are against the law & facts and the impugned orders, which are pre-mature result of mis-reading and non-reading of the facts without application of judicial mind, are liable to be set-aside. The counsel for the petitioner has contended that the impugned orders are illegal and have been passed without lawful authority; the trial court has failed to appreciate that in order to issue summons to respondent, the petitioner was required to establish “*prima facie case*”; establishing the “*prima facie case*” does not mean “*case proved*”; that the evidence led by the petitioner/complainant was cursory; that the principle of appreciation of evidence at the preliminary inquiry with the yardstick of the full length trial is not the purpose under

section 202 Cr.P.C.; that the petitioner has placed sufficient material on record to establish prima facie case.

4. Heard the arguments.

5. The record manifests that initially FIR No. 927/2024 under Section 302 PPC was registered at Police Station Ghaziabad against the sons of the present petitioner, and the petitioner subsequently sought to set the criminal law in motion by lodging a cross-version in respect of the same occurrence. It is borne out from the record that an application dated 28.03.2024 was moved by Mst. Tahira Latif Khan, wife of the petitioner, wherein she nominated one Ahmed, admittedly the deceased/victim in the principal FIR, as the prime accused and attributed to him the specific role of inflicting a knife blow upon Dr. Aleem Khan, allegedly causing injuries at his hand. Significantly, in the said application, the present petitioner was not cited as an eye-witness of the occurrence. Notwithstanding, the police authorities did not proceed to record the cross-version on the basis of the said application. Feeling aggrieved by such inaction, Mst. Tahira Latif Khan invoked the jurisdiction under Section 22-A(6), Cr.P.C., whereupon her petition was accepted and a cross-version was eventually got recorded. However, it is noteworthy, if not intriguing, that at the time of recording the cross-version before the local police, she materially altered her stance. Instead of reiterating the earlier nomination of Ahmed, she introduced respondent No.1 Imran son of Sharif as the principal assailant and attributed to him the role of attacking her son Dr. Aleem Khan, with a knife. Furthermore, she cited only two eye-witnesses, namely Arif son of Alam Khan and Touseef son of Muhammad Hanif, whose statements, however, were not recorded by the Investigating Officer during the pendency of the cross-version, nor did they appear before him till its culmination. Subsequently, the private complaint was instituted by the petitioner, husband of Mst. Tahira Latif Khan, who again nominated respondent No.1 Imran son of Sharif and ascribed

to him the specific role of causing knife injuries to Dr. Aleem Khan. A perusal of the list of witnesses appended with the private complaint reveals that it comprises (i) the complainant himself, (ii) Dr. Aleem Khan, the alleged injured, and (iii) the Medical Officer who purportedly conducted the medico-legal examination. This enumeration of witnesses' stands in stark contrast to the earlier version advanced by Mst. Tahira Latif Khan and reflects a noticeable departure from her initial narrative. It is further of paramount significance that the medico-legal certificate (MLC No. 537/2024) pertaining to Dr. Aleem Khan is available on record, which indicates that his examination was conducted on 09.04.2024 at 2:20 p.m., whereas the alleged occurrence is stated to have taken place on 28.03.2024. The unexplained delay of several days in securing the medico-legal examination casts a serious cloud over the veracity of the prosecution story and does not commend itself to a prudent mind. Moreover, in the main FIR No. 927/2024 under Section 302 PPC, the alleged weapon of offence, i.e., a knife (churri), was purportedly recovered from the possession of Dr. Aleem Khan on 22.04.2024, in respect whereof a separate FIR No. 1088/2024 under Sections 13(2-a)/20/65 of the Arms Ordinance was registered at Police Station Ghaziabad. This circumstance, juxtaposed with the shifting versions and procedural anomalies, creates a mosaic of contradictions which cannot be lightly brushed aside and warrants cautious judicial scrutiny.

6. Furthermore, the private complaint was filed on 25.3.2025, while the occurrence was allegedly taken place on 28.3.2024, which is almost after delay of one year. Under settled principles of criminal jurisprudence, promptitude in setting the law into motion lends assurance to the truthfulness of allegations, whereas inordinate delay may cast a shadow of doubt over the authenticity of the prosecution version. In the case of Abdul Muktadar and another v. District and Sessions Judge, Jhang and 2 others (2010 SCMR 194), it has been observed that initiation of process under sections 202 and 204

of the Code depends upon the availability or non-availability of sufficient incriminating material. Moreover, in the case of Abdul Wahab Khan v. Muhammad Nawaz and 7 others (2000 SCMR 1904) it was held that provisions as contained in sections 202 to 204 of the Cr.P.C, if read together, would show that a proper safeguard has been provided by the Legislature by using the words “if any” and “sufficient grounds for any” in section 203 of the Code and accordingly the frivolous and vexatious complaints must be buried at their inception where no prima facie case is made out. Further reliance may be placed upon the case titled Zafar and others v. Umer Hayat and others (2010 SCMR 1816). It was observed that although no limitation is prescribed in criminal prosecution, yet longer the complaint is delayed, the lesser would become the chance of believing its truth. In other cited cases at the bar noted above, the same proposition came to be considered by the Apex Court wherein it was observed that when complaint is filed after a considerable delay which was not explained by complainant, even in such situation it raises suspicion as to its truthfulness. Complaint loses its truthfulness with length of delay, more particularly when it is based on oral evidence.

7. For issuance of process for the purpose of summoning the accused in the complaint, law only requires availability of “sufficient ground” as provided under Section: 204 Cr.P.C. and not the “reasonable ground”. Term “sufficient ground” for “proceeding” against the accused person in complaint mentioned in Section 204 Cr.P.C. cannot be equated with term “reasonable ground” for “believing” against the accused that they have been guilty of the offences within the contemplation of Section 497 (1) Cr.P.C. “Prima facie case”, does not mean a case proved beyond shadow of doubt but a case which can be established if evidence led in support of the same is believed. In this case, neither any reasonable ground exists nor sufficient ground is available to issue process of summoning of the proposed accused. Moreover, the story of

the petitioner itself appears to be self-engineered and does not appeal to a prudent mind. It may be added here that intention of legislature under Section 190 read with Section 200 Cr.P.C is that while providing remedy to file private complaint is also to save the public against frivolous or vexatious complaints filed against them in the criminal Court and Courts must not lightly accept written complaint until the Court is satisfied that prima facie case is made out against the accused. The findings of the trial court explicitly show that the complainant and his witnesses utterly failed to bring the case against the respondent/proposed accused through cogent evidence.

8. Besides above, the provisions of Sections 202, 203, and 204 of the Cr.P.C. require courts to conduct a thorough examination of the evidence supporting allegations made against individuals. In this context, the court must consider not only the factual basis for the accusations but also the underlying purpose of bringing those charges forward. This includes evaluating whether there is a legitimate objective behind the allegations or if they serve to unjustly target or harass the accused. Moreover, the court should assess the possibility of victimization, ensuring that individuals are not subjected to legal actions that could lead to unnecessary distress or humiliation. A careful analysis of the provisions of Sections 201 and 202 of the Cr.P.C. reveals that the purpose of inquiry or investigation under Section 202 Cr.P.C. is to enable the Court to scrutinize allegations thoroughly, with the aim of protecting a person complained against from being summoned to face frivolous accusations. Section 202 of the Cr.P.C is, in fact, an enabling provision that empowers the Court to conduct an effective inquiry into the truthfulness or otherwise of the allegations presented in the complaint. This inquiry serves to help the Court form an opinion as to whether there are sufficient grounds to proceed further. Therefore, the inquiry or investigation under Section 202 of the Cr.P.C is not a futile exercise and must be considered by the Court when

deciding whether or not to issue process. Reliance is placed upon case titled Muhammad Rajar Vs. The State through Prosecutor General Sindh and others (PLD 2025 Supreme Court 40). Thus, the material presented by the petitioner in support of the complaint failed to make out a prima facie case and this inadequacy of supporting material necessitates that the trial Court as well as learned Revisional Court exercised their jurisdiction to dismissed the complaint as well as revision petition, thereby preventing the legal system from being burdened with unsubstantiated claim.

9. As a sequel to my above discussion, I find no merit in the instant petition, which is dismissed in *limine*.

(Sardar Akbar Ali)
Judge

Approved for reporting.

JUDGE

I.R.Karimee *